

Kirtikumar D. Vyas v. State of Gujarat

Citation: 2022 SCC OnLine Guj 1420 | Court: Gujarat High Court | Year: 2022

Coram: Division Bench, High Court of Gujarat | Subject: Constitutional Law | Provisions: Art 226, Art 311, Service Jurisprudence

I. EXECUTIVE SUMMARY & CASE GLIMPSE

In departmental disciplinary inquiries against public servants, failure to supply the inquiry officer's report and relevant documentary annexures constitutes a fatal violation of Natural Justice under Article 311(2). High Courts under Article 226 will quash dismissal orders suffering from procedural unfairness.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Art 226, Art 311, Service Jurisprudence. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to Art 226, Art 311, Service Jurisprudence.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.

Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Natural justice is not an unruly horse but a cornerstone of fair administrative action. A delinquent employee has a constitutional right to represent against findings before the disciplinary authority imposes punishment.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Quashed termination for non-supply of preliminary inquiry report in Gujarat.
- â€¢ Enforced the Managing Director, ECIL v. B. Karunakar doctrine in state service matters.
- â€¢ Affirmed High Court writ powers under Article 226 to correct procedural injustice.